

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg		Type	A1
Folder #		PD #			
Item Manager		Work Function		Phone	Code
Technician		Work Function		Phone	Code
Buyer		Work Function		Phone	Code

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	ACTUATOR ASSY	Quantity	
NSN	7HH 4820 017004093 X3	Cage Code	
P/N	Y109101025AK1	Unit Price	
Option		Option %	
Estimated Value	311,966.00		
Ship To			
Period of Performance: Expected Final Delivery Date			

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

LESLIE CONTROLS INC (CAGE 35795) the rights to use the data needed to purchase/repair this part from additional source(s) are not owned by the Government and cannot be purchased, developed, or otherwise obtained. It is uneconomical to reverse engineer this part. LESLIE CONTROLS INC (CAGE 35795) is the only source approved to manufacture the required item only.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

12/04/2024

and as a result

Only one source is responsive to this procurement.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

This item is a spare part required for the Nuclear Reactor Program (NRP). N94 review of the following systems has been completed to confirm part number, price, and sources. ITIMP (Integrated Technical Item Management & Procurement) System, ADSARS- (Automated Document/Drawing Storage and Retrieval System), Enterprise Business System (Secure System), IRPOD (Individual Repair Part Ordering Data), Based on the market research the source listed is the only manufacture with manufacturing rights to the underlying data.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

Previous J&A Available in Workflow Pro

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By

Work Function

Created Date

11/21/2024
21-NOV-24

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements
Cognizance
Signature

Work Function

Requirements
Cognizance
Signature Date

12/03/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical
Cognizance
Signature

Work Function

Technical
Cognizance
Signature Date

12/03/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification
Signature

Work Function

Contracting Officer Certification
Signature Date

01/06/2025

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition
Advocacy Review
And Concurrence
Signature

Work Function

Competition
Advocacy Review
And Concurrence
Signature Date

01/06/2025

I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency
Review Signature

Work Function

Legal Sufficiency
Review Signature
Date

01/14/2025

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304
Signature

Work Function

Approval Required
By Far 6.304
Signature Date

01/17/2025